

The United Kingdom of Great Britain and Northern Ireland (the UK), with a population of 60.8 million, is a constitutional monarchy with a multiparty, parliamentary form of government. Citizens elect representatives to the House of Commons, the lower chamber of a bicameral legislature. They last did so in free and fair elections in 2005. Members of the upper chamber, the House of Lords, occupy hereditary or appointed seats. Civilian authorities maintained effective control of the security forces.

There were some reports of police misconduct and occasional abuse of detainees and other persons by police and military personnel and employees of government contractors. There were also reports of overcrowded prisons and some inadequate prison infrastructure. Societal problems included discrimination against religious minorities; mistreatment of women, children, ethnic minorities, gay persons, and persons with disabilities; and trafficking of persons.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no reports that the government or its agents committed any politically motivated killings; however, the Independent Police Complaints Commission (IPCC) reported that in 2008-09 police shot and killed three persons in the performance of their duty, the same number as in 2007-08.

In July 2008 the Ministry of Defense agreed to pay 2.8 million pounds (approximately \$4.5 million) to the family of Iraqi civilian Baha Mousa, who died in 2003 after suffering 93 injuries during a two-day detention by UK

troops in Iraq. In 2007 a court-martial sentenced a soldier to one year in prison and dismissed him from the army for the inhuman treatment of Mousa. Six other soldiers were acquitted; no one was convicted in the deaths. In July 2008 the Ministry of Defense announced a public inquiry, which began taking evidence on July 13 and which was scheduled to last through mid-2010.

Proceedings continued in three cases involving allegations of government involvement, collusion, or culpability in killings during the conflict in Northern Ireland in the 1980s and 1990s.

b. Disappearance

There were no reports of politically motivated disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices and authorities did not usually engage in them; however, there continued to be allegations that members of the military services were at least complicit, if not participants, in the torture of detainees overseas, that individual police officers occasionally abused detainees, and that guards under contract to immigration authorities abused deportees while returning them to their home countries. Police are subject to oversight by the Independent Police Complaints Commission, which investigates charges of abuse and has the power to punish police officers if abuse is found.

There were a number of allegations that the intelligence services colluded in the torture of citizens or residents. The attorney general asked the police to investigate two cases in which the domestic and external security services, respectively, were complicit in torture of detainees. A number of citizens alleged that they were tortured by Pakistani authorities with UK government complicity, and

at least one has appealed to the European Court of Human Rights (ECHR).

In 2008 several citizens, all UK-Pakistani dual nationals, made similar charges. The Home Office asked the attorney general to investigate these allegations. There were no updates on these cases at year's end.

In September the IPCC issued statistics for 2008-09 indicating that approximately 7,679 complaints of sexual assault, serious nonsexual assault, and "other assault" were made against police, which represented an increase of approximately 4 percent from the previous year. Investigations were initiated in 57 percent of serious nonsexual assault complaints, 47 percent of sexual assault complaints, and 37 percent of other assault complaints in 2008-09. Of the investigations that were brought to resolution in 2008-09, the complaints were found to be substantiated in 10 cases of serious nonsexual assault, six cases of sexual assault, and 108 cases of other assault.

A Consultative Group on the Past in Northern Ireland, containing prominent individuals from both sides, concluded its work on ways to deal with the legacy of decades of strife between the two communities in Northern Ireland and released its report in January, with the overarching objective of promoting peace and stability in Northern Ireland. The report found that significant intercommunal suspicion continued to exist in Northern Ireland. At the end of the year, implementation of the Consultative 'Group's recommendations, including the establishment of a Legacy Commission, were still being debated. Under the Victims and Survivors Act for Northern Ireland that took effect in June 2008, four cross-community "commissioners" were appointed to address the needs of victims of the decades-long violence. The legitimacy of their appointments was challenged, but the judiciary upheld the appointments, and the Commission

for Victims and Survivors Northern Ireland continued to provide support to victims and survivors sought assistance.

In 2008 the ECHR issued a judgment that found one violation by the country involving the prohibition of inhuman or degrading treatment as provided under the European Convention on Human Rights.

Prison and Detention Center Conditions

Prison conditions generally met international standards, and the government permitted visits by independent human rights observers; however, overcrowding and poor facilities continued to be problems. A study by the nongovernmental organization (NGO) Inquest, indicated that, as of December 23, the number of suicides in prison was 60, compared with 61 in 2008.

The Ministry of Justice reported the prison population in England and Wales on December 18 was 84,231 in facilities designed to accommodate 85,986. The Prison Reform Trust released a report, based on government statistics, stating that 88 out of 140 prisons held more than the "certified normal accommodation." The Scottish Prison Service reported that as of December 18, 7,688 inmates were in prisons designed for approximately 6,600. England, Wales, and Scotland continued early release programs for nonviolent offenders that somewhat reduced overcrowding.

Prison overcrowding and insufficient care of individuals who were in custody for their own protection or for offenses related to mental illness were cited as contributing to the number of deaths. The Scottish Prison Service reported 29 deaths in custody, 17 more than in 2008. In the same period, at least one person in Northern Ireland had died in custody. The known case was a suicide in which the officers were under investigation for neglect. As of year's end, no new data was available.

The chief inspector for prisons criticized the prison system for inadequately protecting Muslim and ethnic minority inmates from attacks by white inmates. In April the Ministry of Justice's National Offender Management Service published its "Single Equality Scheme," which aims to address inequalities in line with the country's equality legislation.

At times juveniles, including some under age 16, were held together with adult prisoners. Although rare, there were instances when pretrial detainees were held with convicted prisoners due primarily to overcrowding.

The government permitted independent monitoring of prison conditions by local and international human rights groups, the media, the International Committee of the Red Cross, and the independent International Center for Prison Studies based at Kings College, London. Some of the organizations undertook monitoring missions during the year.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention, and the government generally observed these prohibitions; however, critics charged that some procedures justified by government as necessary to combat terrorism constituted preventative detention.

Role of the Police and Security Apparatus

Civilian authorities maintained effective control over the regional police forces, and the government has effective mechanisms to investigate and punish abuse and corruption. There were no reports of impunity involving the security forces.

Arrest Procedures and Treatment While in Detention

In most cases police officers may make an arrest only if they have reasonable grounds for suspecting that someone has committed or is about to commit one or more listed

"arrestable offenses," or if an officer believes an arrest is necessary to prevent physical injury or damage to property.

The Police Reform Act of 2002 introduced Community Safety Accreditation Schemes, which allowed police chiefs to grant nonpolice officers "enforcement powers," including the right to issue citations and fines and to demand the names and address of persons stopped in the street. A 2008 Home Office report revealed that 23 police forces had implemented community safety accreditation programs "" and granted enforcement powers to 1,600 civilians. Human Rights groups and opposition politicians called the practice a civil rights violation and a move towards excessive surveillance. Opposition politicians noted that there were already regular police and other officials with law enforcement powers as well as fully trained and uniformed volunteers and a comprehensive closed-circuit television surveillance network. The government defended the practice as consistent with the 2002 Police Reform Act, citing existing procedure that permits a chief constable to designate a limited number of persons with a limited amount of enforcement power who are "employees of organizations which contribute to public safety."

Police may detain an ordinary criminal suspect for 96 hours without charges. However, detention for more than 24 hours must be authorized by a senior police official, and detention of more than 60 hours requires the approval of a magistrate. Only terrorism suspects may be detained without charge longer than 96 hours. Authorities may hold terrorism suspects for up to 28 days before formally charging them; they are entitled to counsel during this period. Existing law permits the extended detention of foreigners who are suspected of being terrorists but who cannot be deported immediately because of the risk they would be tortured or executed in their countries of

destination. Such individuals may appeal their designation as terror suspects.

The law gives defendants awaiting trial the right to bail, except for those judged to be flight risks, likely to commit another offense, suspected terrorists, or in other limited circumstances. Detainees may make telephone calls and have legal representation, including government-provided counsel if they are indigent.

In February the Law Lords ruled that radical preacher Abu Qatada, whose "inspirational" tapes were found in the German apartments used by Mohammad Atta and other 9/11 terrorists, could be deported to Jordan. This reversed a 2008 ruling that had released him in the UK because the court ruled that "assurances" of humane treatment, contained in a memorandum of understanding between the UK and Jordanian governments, were an inadequate safeguard. (Abu Qatada was convicted in absentia in Jordan on terrorism charges in 2000.) The Abu Qatada ruling also applied to two terrorism suspects from Algeria, opening up the possibility of their deportation. The UK continued to hold a number of other detainees whom it deemed dangerous but had not deported due to concerns about torture in their home countries. Abu Qatada's lawyers appeal to the ECHR was pending at year's end.

A day after the Abu Qatada ruling in the UK, the ECHR awarded damages to Abu Qatada and 10 others because their detention without trial violated their human rights. However, the court awarded damage amounts that "were substantially lower than those the ECHR had made in past cases of unlawful detention, in view of the fact that the detention scheme was devised in the face of a public emergency and as an attempt to reconcile the need to protect the UK public against terrorism with the obligation not to send the applicants back to countries where they faced a real risk of ill-treatment."

The Terrorism Act permits a judge (or the home secretary, with a judge's permission) to impose "control orders," which include a range of restrictions, up to house arrest, on individuals suspected of involvement in terrorism-related activities, regardless of nationality or perceived terrorist cause. Control orders were first employed in January 2008. The government used control orders to keep terrorism suspects under arrest without allowing suspects to know the charges against them or see the government's evidence. The Law Lords ruled in June that the government's refusal to allow two men to know the charges against them was a violation of the Human Rights Act. The lords ruled that the defendants' legal appeal had to be reheard by the lower court. The ruling did not forbid the use of control orders generally, but most observers interpreted it as a precedent that others subject to control orders could use in their own appeals.

In 2008 the ECHR issued judgments that found two violations by the country of the right to liberty and security as provided under the European Convention on Human Rights.

e. Denial of Fair Public Trial

The law provides for an independent judiciary, and the government generally respected judicial independence in practice.

Trial Procedures

The law provides for the right to a fair trial, and an independent judiciary generally enforced this right.

Defendants enjoy a presumption of innocence. Criminal proceedings must be held in public except those in juvenile court and those involving public decency or security. In a trial under the Official Secrets Act, the judge may order the court closed, but sentencing must be public.

The law generally allows for jury trials. In England and Wales, the law provides for judge-only trials when there is

a "real and present danger that jury tampering would take place." On June 18, the appeals court ruled that a robbery case being heard for the fourth time should be heard without a jury. This will be the first juryless case in the Crown Court. In Northern Ireland, trials by a single judge, employed during previous decades in response to intimidation of juries by paramilitaries, ceased to be the norm in July 2008. However, as in the case of England and Wales, nonjury trials may be held in cases involving possible intimidation of juries. Scotland allows jury trials in criminal and civil cases.

Defendants have the right to be present at their trials, to consult with an attorney in a timely manner, and to question witnesses against them. Defendants have access to government-held evidence relevant to their cases, with some exceptions, including instances in which information pertaining to a suspect is acquired through sources associated with national security.

"Intercept evidence"--evidence collected by electronic interception--is not admissible in a court of law. The police claimed that divulging their methods and sources would hamper their effectiveness. Human rights organizations and prominent politicians criticized this rule, asserting that it led the government to use administrative or nonjudicial means of detaining criminal suspects who could not be prosecuted without the intercept evidence. The Home Office commissioned a report on the subject in 2008, but no action had been taken by year's end.

Defendants have the right to appeal to successively higher courts. Indigent defendants have the right to free counsel of their choice, with some exceptions.

In 2008 the ECHR issued judgments that found one violation of the European Convention on Human Rights by the country with respect to length of proceedings and one violation of the right to an effective remedy.

Political Prisoners and Detainees

There were no reports of political prisoners or detainees.

Civil Judicial Procedures and Remedies

There is an independent and impartial judiciary in civil matters, including access to a court to bring lawsuits seeking damages for, or cessation of, a human rights violation. Administrative remedies were also available.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions, and the government generally respected these prohibitions in practice.

In April the country implemented an EU directive by requiring Internet service providers (ISPs) to retain records of all users' Internet activity for one year. This follows a similar requirement effective in 2008 that applied to landline and cellular telephone calls. Both policies were a change from the previous system in which data retention was voluntary. Intelligence and law enforcement agencies, emergency services, and a number of other governmental bodies can request the data but must demonstrate a legitimate need for the information to protect public safety and ensure compliance with UK law. Critics claimed that in practice agencies can self-authorize warrants and that the ability to intercept communications was too broad.

The use of electronic surveillance requires the approval of the home secretary, who authorizes an "interception warrant," which must name or describe either one person or a single set of premises where the interception is to take place. However, in limited circumstances the home secretary may issue a "certified" interception warrant, eliminating the requirement to specify a person or premises. Certified warrants are intended only for communications with overseas parties. They include communications channeled through a foreign ISP. An

independent "interception of communications commissioner" oversaw interception warrants, and the Investigatory Powers Tribunal investigated public complaints of surveillance abuses. According to its annual report, published in July, the tribunal received 136 new complaints in 2007 and completed its investigation of 70 of these, together with 32 of the 41 cases carried over from 2008. The tribunal carried a further 75 cases forward to 2009. This represented an increase in complaints from 2008, when 66 complaints were lodged. Two cases were decided in favor of the complainant. Only one case had been decided in the complainant's favor prior to 2008.

In April the government announced that it would not pursue a centralized database that would store all communications data collected by communications service providers. Human rights groups had been critical of plans to do so.

In 2008 the ECHR issued judgments that found three violations by the country of the right to respect for private and family life as provided under the European Convention on Human Rights. In December 2008 the ECHR ruled that the government's retention of DNA profiles from individuals not charged with a crime or cautioned for an offense violated the privacy clause of the convention.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The law provides for freedom of speech and of the press, and the government generally respected these rights in practice. An independent press, an effective judiciary, and a functioning democratic political system combined to ensure freedom of speech and of the press.

Judges can issue media suppression orders to prevent the publication of information about trial proceedings or other topics. In March, Barclays bank obtained a media

suppression order that forced a newspaper to remove from its Web site leaked documents regarding alleged tax-avoidance schemes and prevented other newspapers from reporting Web sites where those documents could be found. In September a law firm representing a company accused of dumping toxic waste in Ivory Coast procured a "super-injunction" preventing the *Guardian* newspaper from reporting on parliamentary proceedings about the case and from reporting that the suppression order had been issued. The *Guardian* challenged the ruling, and the law firm agreed to allow the newspaper to report on the parliamentary proceedings.

In May a court ruled that Simon Singh had committed libel in an article in which he criticized the British Chiropractic Association (BCA). The court ruled that what Singh saw as a scientific criticism was in fact a charge about the BCA's intentions, and therefore could be treated as libel. Also during the year, a U.S. company sued Briton Peter Wilmschurst for libel based on his criticisms of a medical device the company produces. Several British free-speech NGOs launched a public campaign to revise libel law in England and Wales.

The 2007 Racial and Religious Hatred Act and other legislation make it an offense to use "threatening words or behavior" toward a religious, ethnic, or racial group. The 2007 act applies specifically to words, behavior, or displays of written material; publishing or distributing written material; the public performance of a play; distributing, showing, or playing a recording; broadcasting or including a program in a program service; or the possession of written materials or recordings with intent to display, publish, distribute, or include such materials in a program service. In September a couple who ran a hotel in Liverpool were charged with a public order offense when a Muslim guest in their hotel complained that they had insulted Islam. The couple maintained that they were

merely expressing their opinion about Christianity and Islam. The trial was due to begin in December.

Court decisions have established that possession of materials advocating terrorism alone was insufficient for conviction under the 2000 Terrorism Act; however, possession of materials that provided practical assistance to terrorists, such as the *al-Qa'ida Manual*, the *Terrorist's Handbook*, the *Mujahideen Poisons Handbook*, and a number of military manuals, did fall within the meaning of the act.

In November 2008 four men were arrested and charged with violations of the Racial and Religious Hatred Act for distributing leaflets in Ireland and the UK blaming Muslims for the heroin trade. The arrests followed controversy over the precedence of free speech over stirring hatred in the community. The Crown Prosecution Service at first advised police that, while racist (most UK Muslims are of South Asian or African descent), the leaflets were protected speech, a position criticized by the National Association of Muslim Police, which advocated halting distribution and investigating the source. Three of the men would not face charges, and one was scheduled to go to trial in early 2010.

The Home Office prohibited Dutch politician Geert Wilders from entering the country in February because of a film he had made about Islam. Wilders successfully appealed the ban to the Asylum and Immigration Tribunal and travelled to the country in October. The law allows the government to bar entry to non-UK citizens who express views that represent "unacceptable behavior." In May the Home Office revealed a list of 16 persons who have been banned since October 2008, while also stating that others were banned but that it would not release their names.

Internet Freedom

There were no government restrictions on access to the Internet. Individuals and groups could engage in the

peaceful expression of views via the Internet, including by e-mail. There were no reports that authorities routinely monitored e-mail or Internet chat rooms. However, the law permits communications data surveillance, including of Internet usage, in the interests of national security, to prevent or detect a crime, or in the interests of public safety. Authorities did not publicly discuss details of their monitoring activities. During the year the government mandated that all ISPs retain records of Internet usage for one year. The new law brought the UK into compliance with EU directives and replaced an arrangement where ISPs provided this information voluntarily. The government officially disavowed its previous proposal of a national database to store Internet usage information amid protests about privacy rights.

The Internet was widely available throughout the country and was available at no cost in public libraries. Approximately 80 percent of the population used the Internet.

Academic Freedom and Cultural Events

There were no government restrictions on academic freedom or cultural events.

b. Freedom of Peaceful Assembly and Association

The law provides for freedom of assembly and association, and the government generally respected these rights in practice.

c. Freedom of Religion

The law provides for freedom of religion, and the government generally respected this right in practice. The government did not consider the Church of Scientology and the Unification Church to be religions for purposes of issuing visas for ministers of religion or missionaries. Since the Church of Scientology does not fall within the definition of religion in the charity law, its chapels did not qualify as places of worship, and authorities did not

consider its ministers to be ministers of a religion. There were no reports of specific visa denials during the year.

The law requires religious education in publicly maintained schools. Localities determine the content of religious instruction, but it must reflect the predominant place of Christianity in the cultural and historical context of the nation while taking into account the teachings and practices of the country's other principal religions, and it must refrain from attempting to convert pupils. All parents have the legal right to request that their children not participate in religious education.

Schools in England and Wales must also provide a daily act of collective worship of "a wholly or mainly of a broadly Christian character." Students of other faiths may offer prayers of their own religion. According to a 2005 survey by the British Broadcasting Company, a considerable number of schools were not participating in this form of worship. Teachers have the right not to participate in collective worship, without prejudice.

Societal Abuses and Discrimination

Kevin McDaid, a 49-year old Catholic community worker, was beaten to death in Northern Ireland in May in what police called a religiously motivated attack after a soccer match. Police charged a number of men with the murder, some of whom also faced charges in other attacks. A number of Catholic sources complained of attempts to intimidate McDaid's family and witnesses, and McDaid's sons were arrested on charges of assaulting one of those accused of their father's murder. The case remained pending at year's end.

There were reports of anti-Islamic attacks against persons and property during the year. In May prisoners at Ranby prison in Retford, Nottinghamshire, constructed a bomb and placed it in a Muslim worship area. Also in May an Islamic Center in Bedfordshire was the target of a suspected arson attack. Throughout the year there were

numerous incidents of violence against individuals and property, as well as a number of rallies and public gatherings with anti-Muslim messages. In October a man ripped a Muslim woman's veil from her face in Leicester, for which he was fined and given a four-month suspended prison sentence. In November a Muslim student in Leicester was beaten by a group of men shouting anti-Islamic statements after the student had tried to stop the men from taunting a Muslim woman for wearing Islamic dress. There were a number of violent attacks in August and September outside a mosque in Tooting, London, including one in which a man was bludgeoned to death. Precise figures for the number of such incidents were not available.

Publication of a book about Mohammed and his youngest wife, *The Jewel of Medina*, scheduled for release in October 2008, was postponed by the publisher "until further notice" for "security reasons." The book's publishing house was firebombed in September 2008. Three men were sentenced to four and one-half years of prison each for the attack.

The Jewish population numbered approximately 300,000. There was an outbreak of anti-Semitic incidents in January and February following the conflict between Israel and Hamas in the Gaza Strip. The Community Security Trust, a group that tracked anti-Semitic incidents, reported that there were 609 anti-Semitic incidents in the first six months of the year, whereas the preceding year had seen 544 incidents. There were 286 incidents in January and 111 in February, both of which were higher than the previous record of 105 from October 2000. Anti-Semitic incidents continued to be higher than in the previous year in March, but the rate of incidents returned to previous levels by mid-year. The incidents included property damage, threats, abusive behavior, and mass-produced or mass-mailed anti-Semitic literature.

For a more detailed discussion, see the *2009 International Religious Freedom Report* at 2009-2017.state.gov/j/drl/rls/irf.

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The law provides for freedom of movement within the country, foreign travel, emigration, and repatriation, and the government generally respected these rights in practice. The government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations to provide protection and assistance to refugees, asylum-seekers, stateless persons, and other persons of concern.

The law prohibits forced exile, and the government did not employ it in practice.

Protection of Refugees

The country is a party to the 1951 Convention relating to the Status of Refugees and its 1967 Protocol. Its laws provide for the granting of asylum or refugee status, and the government has established a system for providing protection to refugees.

Based in part on the EU's "Dublin procedure," the government placed the burden of proof on asylum seekers who arrive from a country on a list of "safe countries" of origin promulgated by the home secretary, who passed through a country where they were not considered to be at risk, or who remained in the country for a period of time before seeking asylum. The law permits authorities to remove an asylum applicant to another country that is deemed responsible for adjudicating an applicant's claim.

In practice the government provided protection against the return of persons to a country where their lives or freedom would be threatened on account of their race, religion, nationality, membership in a particular social group, or political opinion.

During the year the Home Office did not enforce deportations of failed asylum seekers from Zimbabwe and Darfur. However, the Home Office stated that there was no legal reason it could not deport someone and that deportation could be enforced on a case-by-case basis. In October the Home Office returned to Iraq approximately 40 Iraqis whose asylum claims were denied. The news media reported that 30 of those were refused entry by the Iraqi government for bureaucratic reasons and returned to the UK for further processing. The ultimate disposition of their cases was not known at the end of the year. The announcement followed criticism from several NGOs about the prospect of deportations. Estimates of the number of failed asylum seekers in the country from Zimbabwe ranged from 11,000 to 13,000. Failed asylum seekers from Darfur were estimated to number in the low thousands.

In September 2008 the Home Office announced that Dame Nuala O'Loan, former police ombudsman for Northern Ireland, would investigate claims of abuse by private contractors, hired by the government to detain and remove failed asylum seekers. A July report by a consortium of NGOs documented the claims of over 300 persons who accused the private contractors of physical and sexual assault and racial abuse. Dame O'Loan was instructed to reopen 50 cases that the government previously classed as unsubstantiated. She was expected to address the appropriateness of using private contractors and whether the use of "reasonable force" was appropriate in dealing with failed asylum seekers.

The government also provided temporary protection to individuals who may not qualify as refugees under the categories of humanitarian protection and discretionary leave. In 2008, the most recent year for which figures were available, the government provided such protection to approximately 2,185 persons during the year.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The law provides citizens with the right to change their government peacefully, and citizens exercised this right in practice through periodic, free, and fair elections held on the basis of universal suffrage.

Elections and Political Participation

Elections to the Northern Ireland Assembly, to the Scottish Parliament, and to the Welsh Assembly took place in 2007. They were generally regarded as free and fair. Free and fair elections to the House of Commons took place in 2005.

On June 4, the country held elections to the European Parliament that were considered free and fair.

On March 12, the Queen granted Royal Assent to the Northern Ireland Act of 2009, which transferred power over policing and justice from the UK to the devolved Northern Ireland government. However the transfer, which many observers considered to be the final piece in Northern Ireland's devolution process, was not completed due to unfinished negotiations over how it would be funded.

The overseas territories, with a total population of approximately 222,000, have varying degrees of self-government based on the UK model, with appointed governors.

There were 125 women in the 646-seat House of Commons and 148 women in the 739-seat House of Lords. There were five women in the prime minister's cabinet. An additional 30 women held other ministerial posts. There was one woman among the 11 justices of the Supreme Court, which began operation in October, replacing the Law Lords as the UK's highest court.

There were 15 members of ethnic minorities in the House of Commons. The number of members of ethnic minorities

in the House of Lords was not reported; there were no members of ethnic minorities in the Cabinet; Baroness Scotland, who is Afro-Caribbean, is attorney general. Four members of ethnic minorities held junior ministerial posts.

Section 4 Official Corruption and Government Transparency

The law provides criminal penalties for official corruption, and the government generally implemented these laws effectively. There were some reports of government corruption during the year.

During the year there was a major scandal over whether members of Parliament had been abusing their expense privileges. In 2008 the courts ordered Parliament to release allowances claimed by its members. This was delayed by Parliament until July. However, the *Daily Telegraph* obtained a leaked copy of the reports and published their findings before Parliament did. When Parliament did publish the expense reports, it blacked out some information, leading to accusations of cover-up. In the wake of the scandal more than a dozen Members of Parliament declared they would not stand for reelection at the next elections. The speaker of the House of Commons resigned in the face of pressure resulting from his perceived support for the expenses system and his reaction to the scandal.

In September the Serious Fraud Office succeeded in prosecuting a UK construction company for bribing foreign officials to win contracts and for violating UN sanctions against Saddam Hussein's regime in Iraq. The court levied fines of approximately five million pounds (\$8 million). Many observers considered the ruling important because it set a precedent by establishing that UK companies could be prosecuted for bribery outside of the UK.

There was continued corruption-related controversy involving the UK's largest defense contractor, BAE

Systems. In 2008 the government terminated its investigation into BAE's involvement in possible bribery connected to a sale in Saudi Arabia. However, on October 1, the Serious Fraud Office announced that it would seek the attorney general's consent to prosecute BAE for involvement in illegal payments in connection with military sales in Eastern Europe and Africa.

The law provides for public access to information, and authorities generally granted access to citizens and noncitizens, including foreign media. There are numerous exceptions to the availability of government information, including those relating to national security and defense, personal privacy, and possible risks to health and safety. In some instances, authorities are not obliged to indicate whether relevant information exists; however, according to authorities, they are obliged to say why they are refusing a request. There are no fees for requesting information; however, there may be a bill for the cost of materials and postal fees. Government agencies may refuse a request if the cost to the government will exceed 450 or 600 pounds (approximately \$730 or \$955), depending on the government body. There was a mechanism to appeal denials. The Coroners and Justice Act was granted Royal Assent on November 12. It allows nonpublic reviews of deaths in the interest of national security.

Section 5 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A variety of domestic and international human rights groups generally operated without government restriction, investigating and publishing their findings on human rights cases. Government officials were cooperative and responsive to their views.

The Equality and Human Rights Commission (EHRC), an independent body funded by the government, was set up in 2007 to protect and promote human rights in the

country. It enjoyed the government's cooperation and operated without government interference. It had adequate resources and operated effectively. The EHRC produced numerous reports on various human rights matters. During the year the EHRC contributed to a report on areas of Britain that do not have services for female victims of violence. In November the government issued a national strategy to end violence against women. Parliament has a Joint Committee on Human Rights, composed of 12 members selected from the House of Lords and the House of Commons. The committee undertook inquiries into human rights matters in the UK and scrutinized legislation affecting human rights.

Section 6 Discrimination, Societal Abuses, and Trafficking in Persons

The law prohibits discrimination based on race, nationality, gender, sexual orientation, or disability, and the government generally enforced the law effectively.

Women

Rape, including spousal rape, carries a maximum penalty of life imprisonment. According to a Home Office publication issued in July, there were 53,477 sexual crimes recorded by the police in 2008-09. The vast majority of these crimes were perpetrated against women. Of the most serious cases where gender of the victim was identified, women were victims of 12,165 cases of rape and 19,740 cases of indecent or sexual assault. The government acknowledged that its rates of conviction in rape cases were far too low; it did not release new statistics on convictions but stated that the conviction rate was approximately 6 percent. A Rape Performance Group was established to hold individual police departments responsible for improving their conviction rates. The government estimated that one in 20 women in the country had been raped.

The government provided shelters, counseling, and other assistance for victims of battery or rape and offered free legal aid to battered women who were economically reliant on their abusers. The government operated 29 Sexual Assault Resource Centers.

The law prohibits domestic violence, including spousal abuse, and authorities strictly enforced the law in cases reported to them. The courts imposed punishment ranging up to life imprisonment; however, violence against women continued to be a problem. The law provides for injunctive relief, personal protection orders, and protective exclusion orders (similar to restraining orders) for female victims of violence.

According to the 2008-09 British Crime Survey (BCS), 6.3 percent of women (and 3.9 percent of men) were victims of domestic abuse during the year. This was an increase over 2007-8 for women. BCS estimates for 2008-09 indicated that approximately 14 percent of all violent crime was domestic in England and Wales and that 31 percent of all violent incidents against women were domestic violence.

NGOs raised concerns that police were not adequately trained to identify and respond when women sought protection.

Police and NGOs estimated that approximately a dozen honor killings occurred each year, although there were no formal statistics. Many observers regarded honor killings as the extreme end of a spectrum that included abductions, forced abortions, imprisonment, mental and physical abuse, and rape. It was generally considered an "imported crime," since a majority of the incidents involved families from Asia, Turkey, Algeria, and Nigeria. Many of the crimes involved hiring outside "hit men"; in other cases the perpetrator was the youngest member of the family, who was supervised by older family members. In December a court convicted a man of killing his 15-year-old daughter in 1999. The man was allegedly angry with

her for her involvement with an older man of a different religious sect.

Forced marriages continued to be a problem, although their extent remained unknown. In 2007 the UK passed the Forced Marriage Protection Act to protect individuals from being forced into marriage. As of July 2, the Forced Marriage Unit's (FMU) helpline had received 770 calls or e-mails, a 16 percent increase over the same period in the previous year. In 2008 the FMU dealt with 440 cases of forced marriage and estimated that there were a total of 5,000 to 8,000 cases of forced marriages in the country; most cases involved families from Pakistan (70 percent) and Bangladesh (11 percent), with smaller percentages from India, the Middle East, Europe, and Africa. The law requires schools, social services, and police to receive training about this phenomenon and to take steps to combat it, ranging from increased truancy monitoring to assisting young persons who come to them for help without parental input. The law criminalizes forced marriage and makes taking individuals out of the country on false pretenses akin to kidnapping. It also has a provision to annul marriages made outside of the country against the will of one partner. In 2008 the government raised the age of persons who are eligible to sponsor a spouse for a marriage visa from 18 to 21 and added a requirement that intending sponsors of such visas register their intent to seek a visa before traveling abroad. Authorities believed that young adults often traveled on what they expected to be a vacation to the home country and were subsequently pressured into marriage and into applying for the spouse's visa.

Prostitution is legal for adults; however, such related offenses as loitering for the purpose of prostitution and maintaining a brothel are illegal. The number of prostitutes in the UK was not known, but authorities and NGOs estimated that approximately 100,000 persons in the country were engaged in prostitution.

The law prohibits child sex tourism and allows authorities to prosecute citizens or residents for offenses committed abroad. Individuals were arrested and in some cases jailed abroad on such charges, but according to the charity End Child Prostitution, Child Pornography, and Trafficking Children for Sexual Purposes (ECPAT), there were only a few cases of prosecution in the UK since the early 1990s, and there were no reports of prosecutions during the year.

The law prohibits sexual harassment and provides penalties of up to five years' imprisonment; authorities followed up on the isolated complaints that were filed.

Couples and individuals enjoy the basic right to decide freely and responsibly the number, spacing, and timing of their children, and to have the information and means to do so free from discrimination, coercion, and violence. The Department of Health has a National Support Team for Sexual Health, which worked to provide universal access to contraception to prevent sexually transmitted diseases and unwanted pregnancies. There is also an Infant Mortality Support Team to improve the health of infants and mothers' after birth.

Women enjoy the same legal rights as men, including rights under family and property law and in the judicial system; however, in practice women experienced some discrimination. According to a 2009 report by the EHRC, women's average hourly earnings were significantly lower than men's. The mean unadjusted hourly gender pay gap was about 17 percent for full-time employees and 37 percent for part-time employees. The EHRC has undertaken a study of the pay gap in the private sector that was ongoing at year's end.

There was a cabinet-level minister for women and a deputy minister for women and equality. Two independent bodies were concerned with women's matters, the EHRC and the Women's National Commission (WNC). The EHRC supported women by enforcing equality legislation

and actively promoting gender equality. The WNC is an umbrella organization representing women and women's organizations. It lobbied the government to take women's views into account and include them in public debate.

Children

All births must be registered within 42 days in the district where the baby was born. Unregistered births were not common, and there were no reports of lack of birth registration as a cause for the denial of public services. Local authorities have procedures for the late registration of babies whose births are not registered within 42 days. Birth within the territory of the UK before 1983 conferred British citizenship for most people. Since 1983, a child becomes a British citizen if he is born in the UK and one of his parents is a British citizen or legally settled resident.

Child abuse remained a problem, although there were no reliable figures on its prevalence. In Northern Ireland it is a criminal offense to fail to report most offenses against children; England, Wales, and Scotland do not have such laws; however, civil servants charged with the care, education, and welfare of children are "responsible" for their protection. The minister for children coordinated government policy concerning children and young persons in England and Wales. In Northern Ireland there was a commissioner for children. In Scotland the Ministries of Education, Young Persons, and Communities supervised similar programs designed to protect and provide assistance to minors.

Public attention was drawn during the year to a case where a nursery worker and two accomplices sexually abused a number of children at the nursery and engaged in distribution of pictures of the children. In December the worker and her accomplices were convicted. Two of the three were jailed indefinitely, and the other was awaiting sentencing at year's end. This case arose after the sentencing during the year of a woman and her boyfriend

to five years and life in prison, respectively, in the case of a child known as "Baby P," who died as a result of abuse, despite knowledge by social services agencies that abuse was taking place.

Female genital mutilation (FGM) is illegal. The maximum penalty for aiding, abetting, counseling, procuring, or carrying out this practice is 14 years' imprisonment. FGM was most often practiced by immigrant or refugee groups on girls aged seven to nine from Eritrea, Ethiopia, Somalia, West Africa, and Yemen. The Department of Health estimated in 2006 that approximately 74,000 women had undergone FGM. During the year the Department of Health in conjunction with several NGOs and universities began a study to better understand the scope of FGM in the UK, with England's chief nursing officer stating that up to 24,000 young girls were at risk. In 2006 the Metropolitan Police Service and a number of NGOs began an awareness and prevention campaign focused on the problem.

The UK has a statutory rape law. It is illegal for a person over 18 to have sex with a person under 16 years old, unless the younger person is over 13 and the adult reasonably thought the younger person to be over 16. Penalties range from fines to 14 years' imprisonment. The law prohibits child pornography and provides for a maximum sentence of 10 years' imprisonment.

Penal reformers and children's groups continued to criticize the government's reliance on antisocial behavior orders (ASBOs), civil "warnings" that can limit children's access to a geographic area or impose tailored curfews. ASBOs were introduced to prevent youths from interacting with the courts and youth services as a result of minor infractions. However, youth who subsequently violate ASBOs could be arrested and would enter the criminal system. Opponents contended that the ASBOs led to criminal records for youth whose behavior in the past

would have been seen as "kids being kids." According to one expert, more than 1,000 youths had been incarcerated for violating the ASBOs since their inception in 2000. Critics claimed that police were too quick to issue the orders for such minor infractions as excessive loudness or congregating in large numbers, violations that some children's advocates described as inevitable. Some experts contended that a third of youths receiving the orders had mental or behavioral problems that did not permit them to understand the orders.

In her annual report issued in January, Anne Owers, the chief inspector of prisons, criticized the use of physical restraint on child prisoners and also reported that a significant number of young prisoners felt unsafe or had been victimized by other inmates.

Trafficking in Persons

The law prohibits all forms of trafficking; however, there were reports that persons were trafficked to, through, and within, the country.

There were no official statistics on the number of trafficking victims. In a 2008 report, police estimated (based on arrests, including from raids on bordellos and statements from those intercepted at the borders) that between 6,000 and 18,000 women and children were engaged in prostitution involuntarily, the majority trafficked from abroad. Regions of origin included Central and Eastern Europe--primarily the Balkans and the former Soviet Union--and Asia, including China. Most victims were women trafficked for sexual exploitation. Women, men, and children were also trafficked for labor exploitation in domestic service, agricultural and rural labor, construction, and catering.

In 2008 law enforcement agencies completed operation Pentameter 2, a crackdown on forced prostitution; prosecution of cases from the operation continued during the year. As of February, police had identified 164 victims

of sex trafficking in 35 police-force areas, including 13 girls between the ages of 14 and 17. All but one of the victims were female. The operation netted 406 suspects, 47 percent of whom were Chinese or Asian, 34 percent EU nationals, and 57 percent female. Sixty-seven suspects were charged with human trafficking, of whom 15 were convicted of trafficking, eight were convicted of other offenses, and 37 were not convicted. Some cases were still ongoing. More than 600 brothels were raided during the operation, most in private homes. In a report on the Pentameter 2 operation, authorities noted that, since prostitution is not a crime, police often had difficulty distinguishing victims of trafficking and forced prostitution from those who engaged in prostitution voluntarily. The report also noted that an increasing number of persons forced into prostitution were born in the country.

On April 1, the UK implemented a national referral mechanism for identifying and referring trafficking victims.

In May the *Guardian* newspaper reported that it had obtained a copy of a government report stating that criminal gangs had been using a children's home near Heathrow Airport to traffic children. The report said that at least 77 children were suspected to have been trafficked. In October the *Guardian* published another investigative article that claimed that the government's efforts had resulted in many fewer arrests than previously expected and that trafficking might not be as great a problem as antitrafficking campaigners suspected. Antitrafficking advocates countered that the police were not well trained in identifying victims and their lack of success in finding victims and perpetrators did not mean that trafficking was not a significant problem.

There were also reports that children were trafficked into the country and forced to work as domestic servants,

beggars, pickpockets, drug couriers, or in sweatshops and restaurants.

Authorities believed that organized gangs were behind most cases of trafficking for commercial exploitation. NGOs claimed that Albanian gangs were heavily involved in prostitution rings in London that used trafficked women. Gangs from Asia appeared to be increasingly involved in trafficking women from that area. Prosecutors also uncovered Eastern European and Chinese involvement in labor trafficking. Traffickers often lured women by false advertisements of work as restaurant staff, maids, and childcare providers. Some victims expected to work in the sex trade but were deceived about working conditions by the traffickers and exploited upon arrival.

Traffickers used a variety of means, including use of valid travel documents, false documentation, and smuggling of aliens past border checks. Authorities believed traffickers frequently used Heathrow Airport as a transit point, primarily for trafficking between European destinations.

Trafficking for prostitution, sexual exploitation, or forced labor carries a maximum sentence of 14 years' imprisonment. The law applies to both citizens and residents and to acts committed domestically or abroad. The law also prohibits such related acts as keeping a brothel and causing, inciting, or controlling prostitution for gain. There are severe penalties for such offenses as causing, inciting, controlling, arranging, or facilitating the prostitution of a child. The law also criminalizes paying for sexual services of a child, as well as travel abroad for the purpose of obtaining sexual services from children.

The Home Office was the lead antitrafficking agency.

Other cabinet-level departments involved in antitrafficking included the Foreign and Commonwealth Office, the Department of Trade and Industry, the Department for Education and Skills, the Crown Prosecution Service, and the Department for International

Finance and Development. The Serious Organized Crime Agency (SOCA) handled trafficking investigations nationally. The UK Human Trafficking Center (UKHTC) shared trafficking intelligence with SOCA and developed training modules for attorneys prosecuting traffickers. The government assisted with international investigations of trafficking.

Immigration officers and airline personnel were trained to identify potential victims of trafficking. The UKHTC developed training programs that enabled police academies to add trafficking to the list of core police competencies. The "Paladin" program at Heathrow specifically screened for vulnerable children. Authorities provided short-term residence permits for victims of trafficking who cooperated with authorities in prosecuting their traffickers.

The government continued funding the Poppy Project, which provided support services to female victims of trafficking for sexual exploitation who were willing to assist law enforcement authorities. The government did not prosecute victims of trafficking who were violating prostitution or immigration laws; however, authorities could deport them to their countries of origin.

Local social services and charities provided services to trafficking victims. The Poppy Project ran a national outreach service. Local social service agencies were responsible for child victims of trafficking, who were usually placed in the foster care system. The government and the NGO community maintained an active dialogue concerning protection services for victims.

The Department of State's annual *Trafficking in Persons* report can be found at 2009-2017.state.gov/j/tip.

Persons with Disabilities

The law prohibits discrimination against persons with disabilities in employment, education, access to health

care, and other state services. The law mandates access to buildings for persons with disabilities, and the government effectively enforced this requirement in practice.

The law requires that all public service providers (except in the transportation sector) make "reasonable adjustments" to ensure their services are available to persons with disabilities. The law forbids employers from harassing or discriminating against job applicants or employees with disabilities.

The mandate of the EHRC, an independent organization funded by the government, included work on behalf of persons with disabilities to stop discrimination and promote equality of opportunity. The commission provided legal advice and support for individuals, a hotline for persons with disabilities and employers, and policy advice to the government. The commission may also conduct formal investigations, arrange conciliation, require persons to adopt action plans to ensure compliance with the law, and apply for injunctions to prevent acts of unlawful discrimination. The EHRC also has a mandate for combating discrimination based on race, sex, religion and belief, sexual orientation, and age, and some disability advocates argued this led to a dilution of efforts on behalf of persons with disabilities.

National/Racial/Ethnic Minorities

The law prohibits racial discrimination, but Travellers (a distinct nomadic ethnic group with its own history and culture), as well as persons of African, Afro-Caribbean, South Asian, and Middle Eastern origin, at times experienced mistreatment on racial or ethnic grounds.

The law authorizes police to order Travellers' caravans to move on from any rest area or other roadside location. Before the enactment of this provision in 2003, such locations were among the Travellers' primary stopping places. Travellers' organizations also reported that local governments across the country sought to evict them from

so-called "illegal encampments." In a high-profile case that has continued for a number of years Travellers fought an eviction order by the town council of Basildon, in Essex, seeking to remove them from the Dale Farm Traveller Settlement. The court initially ruled that the council could not remove the Travellers but during the year another court reversed this ruling. At the end of the reporting period, the Basildon Council had awarded a contract to a company to carry out the eviction, but the eviction had not taken place.

The British Crime Survey recorded 12,299 racially or religiously aggravated crimes and 25,755 incidents of racially or religiously aggravated harassment or public fear, harm, or distress.

During the year several dozen Eastern Europeans moved away from Belfast due to the extensive abuse they had been subjected to due to their national origin. The Police Service of Northern Ireland (PSNI) reported 990 racially motivated incidents from April 2008 through March 2009, up by 1.4 percent from the preceding 12-month period. The PSNI reported 771 racially motivated crimes, including 302 violent crimes, during the same period.

In October 2008 Home Secretary Jacqui Smith announced that the government would reappraise recruitment and promotion practices in police forces in England and Wales. London's mayor also announced his own inquiry into race and the London Metropolitan Police, commonly known as Scotland Yard.

Societal Abuses, Discrimination, and Acts of Violence Based on Sexual Orientation and Gender Identity

The law prohibits discrimination and harassment based on sexual orientation; however, sporadic incidents of homophobic violence were reported. The law encourages judges to impose a greater sentence in assault cases where the victim's sexual orientation is a motive for the hostility, and many local police forces demonstrated an increasing

awareness of the problem and trained officers to identify and moderate these attacks. Numerous lesbian, gay, bisexual, and transgender NGOs existed and operated freely. Dozens of gay pride marches and other activities took place in locations throughout the country legally and with no interference by the authorities.

In 2008 Stonewall, a gay-rights organization, released the results of a survey, conducted by the online polling service YouGov, which found that 20 percent of all gay respondents had suffered some form of hate crime, yet only 1 percent of hate crimes led to convictions. The Crown Prosecution Service released a report on December 16 stating that 1,090 homophobic crimes had been transferred to it in 2008–09, of which 65.1 percent resulted in charges being pressed. The service prosecuted 1,013 homophobic cases, 80.5 percent of which resulted in a conviction.

Other Societal Violence or Discrimination

There were no reports of violence or discrimination against persons with HIV infection during the year.

Section 7 Worker Rights

a. The Right of Association

The law provides for the right of workers, except those in the armed forces, public sector security services, and police forces, to form and join independent unions without previous authorization or excessive requirements, and workers exercised this right in practice. Freelance or agency workers were not entitled to these rights. The law compels employers with 21 or more employees to recognize unions so long as the majority of workers have endorsed union representation. However, small enterprises of fewer than 21 employees are effectively denied the right of representation by trade unions. Approximately 26 percent of the workforce was unionized. In September the Trade Union Congress reported that membership

decreased by approximately 300,000 during the year, but this was likely due to the fact that the economy lost 600,000 jobs. Given the large number of lay-offs, the membership percentage may have actually increased. Coverage was most widespread in the public sector, where almost 60 percent of workers were unionized. In contrast, 17 percent of private sector workers were unionized. Manufacturing, transport, and distribution trades were highly unionized. The law allows unions to conduct their activities without interference, and the government protected this right in practice. Workers have the right to strike and freely exercised it during the year.

b. The Right to Organize and Bargain Collectively

Collective bargaining is protected in law and was freely practiced. Unions and management typically negotiate collective "agreements," less formal than collective bargaining contracts. Collective agreements are considered as "implied" in individual work contracts and are legally enforceable as such. They covered approximately 35 percent of the workforce. There were no reported instances of antiunion discrimination.

Six Kosovo construction workers were unfairly dismissed from their jobs after they involved the Union of Construction, Allied Trades, and Technicians, the construction workers' union, in a workplace dispute. The workers took the case to court, where the judge ruled in their favor and awarded them 46,000 pounds (\$73,000).

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The government prohibits forced and compulsory labor, including by children; however, there were reports of forced labor by men, women, and children. Police estimated that between 6,000 and 18,000 women and children, the majority trafficked to and within the country from Central and Eastern Europe and Asia, engaged in

involuntary prostitution. Women, men, and children were also trafficked to and within the country for labor exploitation and worked as domestic servants in private homes, beggars, pickpockets, and drug couriers, and in sweatshops, restaurants, agricultural and rural settings, construction, and catering. Unaccompanied foreign children, including girls from China, were subjected to sexual exploitation and forced labor. Hundreds of young children, many from Vietnam and China, were subjected to debt bondage by Vietnamese organized-crime gangs and forced to work on cannabis farms.

Traffickers controlled their victims through insistence that they repay endless "debts" for room and board and travel expenses, by withholding their travel documents, misleading them about law enforcement and immigration penalties, and threatening violence against them or their families.

d. Prohibition of Child Labor and Minimum Age for Employment

There are laws to protect children from exploitation in the workplace, and the government generally enforced these laws effectively; however, children were forced into prostitution and forced labor. Large numbers of children under age 18 work, mostly in ways permitted by the law. However, anecdotal evidence from social workers made clear that many children work longer or later hours than the law allows and many do not have the proper work permits. In many cases this was voluntary, and the children's parents agreed to or encouraged the child's working. In other cases, children were found working illegally in restaurants, farms, factories, the sex industry, and in cleaning and other low-paid service-sector jobs with long hours and low pay. Many of these children did not attend school. These problems affected migrant children disproportionately, but legally resident children were affected as well.

The law prohibits the employment in any capacity of children under 13. Those under 16 are not permitted to work in an industrial enterprise, including transportation or street trading; their work hours are strictly limited and may not interfere with school attendance. Children under 16 may work as part of an educational course. Independent NGOs claimed that as many as two million school-age children were involved in part-time employment. Children age 13 to 16 must apply for a work permit from a local authority, and the local authority's education and welfare services have primary responsibility for oversight and enforcement. Authorities effectively enforced these laws. The Departments of Health, Trade and Industry, and Education and Skills also have regulatory responsibilities related to child labor.

e. Acceptable Conditions of Work

The national minimum wage, which ranged from 3.53 to 5.73 pounds (approximately \$5.65 to \$8.15) per hour, depending on the age of the employee, did not provide a decent standard of living for a worker and family; however, government benefits, including complete free universal access to the National Health Service, filled the gap. Tax authorities may issue compliance orders against employers that are not paying the minimum wage, but employment tribunals handle disputes. The government aggressively monitored employer efforts to bring pay practices into compliance with minimum wage law. Unions and NGOs were also actively involved in ensuring employees' awareness of their rights.

The law limits the workweek to 48 hours when averaged over a 17- to 26-week period; however, the regulations do not apply to senior managers and others who can exercise control over their own hours of work. There are also exceptions for the armed forces, emergency services, police, domestic workers, sea and air transportation workers, and fishermen. Workers can opt out of the 48-

hour limit. The law provides for one day of rest per week, 11 hours of daily rest, and a 20-minute rest break when the working day exceeds six hours. The law also mandates a minimum of four weeks of paid annual leave, including eight national holidays. However, the average worker received five weeks of paid annual leave plus eight bank holidays as part of collective agreements. An individual employee may agree through a contract to work overtime for premium pay. The law does not prohibit compulsory overtime, but overtime is limited by the 48-hour week restriction.

The law stipulates that the health and safety of employees not be placed at risk, and it was effectively enforced by the Health and Safety Executive (an arm of the Department of Work and Pensions), which could initiate criminal proceedings in appropriate cases. Workers' representatives also actively monitored enforcement of the law. Workers may legally remove themselves from dangerous work conditions without jeopardy to their continued employment. In 2008-09 the Advisory, Conciliation, and Arbitration Service reported more than 43,000 cases received from employment tribunals on grounds of unfair dismissal, which can include dismissals for safety-related reasons.